

25SMCV04823 25SMCV04823

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25SMCV04823 Hearing Date: July 16, 2026 Dept: M

CASE NAMES: Serene Corp. v.

Rene's Cultivar LLC;

Adamian

Family Trust v. Rene's Cultivar LLC, et al.

CASE NOS.: 25SMCV03661/25SMCV04823

MOTION: Motion to Relate Cases

HEARING DATE: 7/22/2026

Legal

Standard

California Rules of Court ("CRC"),

rule 3.300 requires both parties to file notices of related case where two or more cases are related within the meaning of the rule. (CRC Rule 3.300(b), (h).) Cases are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (CRC Rule 3.300(a).) "The Los Angeles Superior Court has hundreds of bench officers and courtrooms. When for tactical reasons one side files an action related to an existing case, both sides must file this routine notice. The notice goes to the trial judge in the low-numbered case, who then

can decide how to handle the parallel litigation. The notice allows the trial court to promote efficiency, to avoid duplicative effort, to combat judge-shopping, and to minimize the prospect of conflicting results. The trial court system relies on this mechanism to detect and to cure the problem of parallel litigation within its jurisdiction.” (Harris v. Rojas (2021) 66 Cal.App.5th 817, 820.)

Los Angeles Superior Court Local

Rule 3.3(f)(3) states in pertinent part: “In the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. ...If the cases are all pending in one district that is other than the Central District, the motion shall be heard by the Supervising Judge of that district. The motion must be served on each party in every case listed in the Notice of Related Cases, with proof of service attached[.]”

ANALYSIS

Defendants/Cross-Complainants

Rene’s Cultivar LLC and Nicholas Jammal move for an order that Serene Corp v. Rene’s Cultivar LLC, et al., Case No. 25SMCV03661 (the “Serene Action”) and Adamian Family Trust v. Rene’s Cultivar LLC, et al., Case No. 25SMCV04823 (the “Adamian Action”) be deemed related and assigned to a single department. Defendants assert that the two actions (i) involve the same or similar parties and are based on the same or similar claims; (ii) arise from the same or substantially identical transactions, occurrences, or events requiring determination of the same or substantially identical questions of law or fact; (iii) involve claims concerning the same property; (iv) are likely to require substantial duplication of judicial resources if heard by different judges; and (v) present a substantial risk of inconsistent results if conducted separately.

Plaintiffs first object on

procedural grounds arguing that this motion violates CCP section 1008. Defendants had filed a notice of related case in both actions, and the Court denied relation on January 27, 2026. Generally, such a ruling would preclude re-litigation of the issue. (CCP § 1008.) However, Local Rule 3.3(f)(3) provides a grounds for a noticed motion after a judge declines to relate cases set forth in notices of related case.

Initially, the two cases were not related.

The Serene Complaint concerns a secured promissory note and related security agreement which Defendants allegedly failed to repay. The Security Agreement granted Serene a security interest in all of Defendants' assets, including Cannabis licenses and regulatory approvals; (b) California commercial cannabis licenses; (c) Accounts, inventory, equipment, fixtures, and tools of the trade; and (d) All property associated with cannabis operations. On the other hand, the Adamian Complaint concerns Defendants' breach of a distinct commercial lease for real property located at 11314 W. Pico Blvd., including Defendants' failure to pay rent, abandoning the property, and causing damage to the property. While both of the actions generally involve Defendants' cannabis business and their alleged failure to repay debts, there was no material connection between the two actions as defined by Rule 3.300. The two complaints did not involve the same parties and were based on different contractual obligations/transactions. The two actions did not involve title to, possession of, or damages to the same property. Thus, it was not facially apparent that the two actions would resolve substantially identical questions of law or fact, or require substantial duplication of judicial resources.

Defendants

argue that the two actions arise from the same integrated transaction and

overlapping course of conduct. Defendants explain that on December 20, 2023, they entered into an Asset Purchase Agreement with Herbalcure Corporation (the "APA"). (Lawrence Decl., ¶ 2, Ex. 1.) The APA transferred the Phase 1 Adult-Use and Medicinal cultivation, manufacturing, and distribution approvals under the Los Angeles Department of Cannabis Regulation ("DCR") application record C12-18-0000191-TEMP (the "APA License"). (Id.) Cross-Defendant Peter Tejera executed the APA on behalf of Herbalcure as its CEO. (Id., Ex. 1, at 33.)

On February 24, 2024, Cross-Complainants executed a Senior Secured Promissory Note in favor of Serene Corp in the principal amount of \$175,000 (the "Promissory Note"). (Id., ¶ 3, Ex. 2.) The Promissory Note was signed by Cross-Defendant Peter Tejera on behalf of Serene. (Id., Ex. 2, at 11.) The Promissory Note is secured by a Security Agreement executed the same day, also signed by Tejera as Serene's CEO. (Id., ¶ 4, Ex. 3.) The Security Agreement is subject to the terms and provisions in the APA, and identifies the local approval and authorization associated with Record No. C12-18-0000191-TEMP (and related Accela records) and any California

commercial cannabis licenses as the collateral. (Id., Ex. 3, §§ A(a), K(a).)

In March 2024, Tejera solicited

Defendants to lease the premises at 11314 W. Pico Boulevard in Los Angeles for cannabis manufacturing, distribution, and cultivation operations as contemplated by the APA. (Id., Ex. 11 ¶ 34.) On April 20, 2024, the Adamian Family Trust entered into a Standard Industrial/Commercial Multi-Tenant Lease with Rene's Cultivar LLC for that property (the "Lease"). (Lawrence Decl. ¶ 5, Ex. 4.) Throughout the Lease term, Tejera served as the sole point of contact with the landlord. (Id., Ex., 11 at ¶ 34.)

Both

cross-complaints center around the acts of Tejera, who allegedly acted as an agent for Serene and the Adamians. The cross-complaints allege that the overall transaction had a commercial objective, and impose interdependent performance obligations. For example, the cross-complaint in the Adamian action alleges that Tejera, acting in multiple capacities as (a) seller of cannabis licensing rights through Herbalcure Corporation, (b) CEO, CFO, and Secretary of Herbalcure Corporation, and authorized agent of Herbalcure in connection with the Lease; and (c) Landlord's agent for the Premises, made systematic misrepresentations that induced Cross-Complainants to execute the subject agreements, invest over \$160,000 in improvements and pay regulatory fees. In the cross-complaint in the Serene Action, Defendants similarly allege alter-ego/agency between Serene Corp, Herbalcure, and Tejera to the APA, Promissory Note, and Security Agreement, and claim fraud-in-the-inducement and declaratory-relief claims that turn on the same misrepresentations. As Plaintiffs recognize, both cross-complaints involve the same parties, the same or similar causes of action, and the same remedies between Defendants, Serene, Herbalcure, Tejera, and the Adamians. Plaintiffs even accuse the pending cross-complaints of being duplicative and violating abatement principles. Thus, the two cross-actions involve the same parties and are based on the same or similar claims, the actions allegedly arise from the same alleged overall transaction which will require the determination of the same or substantially identical questions of law or fact. Thus, the actions will require substantial duplication of judicial resources if heard by different judges.

Plaintiffs complain that relating

the cases will somehow prejudice them. However, Plaintiffs only identify prejudice from consolidating the

actions. This motion is not for consolidation. Merely relating the cases will simply place the two cases in the same

department, which would not result in any meaningful prejudice.

Accordingly, the two actions are deemed related. 25SMCV03661 is the lead case. 25SMCV04823 is reassigned to Department N for all purposes. All hearings currently set in case 25SMCV04823 are advanced and vacated. A Case Management Conference is set for August 27, 2026, at 8:30 a.m. in Department N.